

**AMENDMENT NO. 1 TO CONTRACT NO. 5939
LEASE FOR PLACEMENT OF BILLBOARDS ON THE BELVOIR RANCH**

This agreement amends Contract No. 5939, dated December 12, 2012, between the City of Cheyenne and the Lamar Companies by extending the lease in accordance with Section Eleven, Renewal Option, of the original contract.

1. Term of Lease.

- A. The lease shall be for a term commencing on February 26, 2018 and expiring on February 25, 2023.
- B. Upon written request by the Lessee, Lessor may extend the lease for one additional five-year term. The request shall be submitted by the written notice to the Lessor at least 120 days prior to the scheduled expiration of the lease. Any extension shall be on the same terms and conditions as set forth in the original lease or as renegotiated by mutual written agreement. Any agreement by the Lessor to so extend shall be conditioned upon Lessee not being in default at the time of giving such notice or at the commencement of the extended term and that the Lessee has practiced good stewardship of the property as determined by the Lessor.

2. Rental.

The annual rental for this lease shall be in the amount of One Thousand Seven Hundred Dollars (\$1,700.00) paid annually within 30 days after the initial commencement date and annually thereafter.

No other provisions of Contract No. 5939 are amended and all other provisions remain in full force and effect.

CITY OF CHEYENNE

Date

Marian J. Orr, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

The Lamar Companies

By:

Name

Title

Date

Attest:

LEASE
CITY CONTRACT #5939

oved as to
only
12-11-12
Date: Nov. 26, 2012

This Lease is made this 20th day of December, 2012, between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and The Lamar Companies, a corporation organized and existing under the laws of the State of Delaware, 5321 Corporate Blvd., Baton Rouge, Louisiana 70808 ("Lessee").

SECTION ONE
DESCRIPTION OF PROPERTY; TERM

In consideration of the rent provided for in Section Two of this Lease, City leases to Lessee real property belonging to City located in Laramie County, Wyoming, and more particularly described as a site for the placement of three billboard advertising signs described as billboard 84-603 measuring not more than 40 feet in length by 10 feet in height located approximately 15.5 miles West of Junction I-25 and I-80 on the South side of I-80; billboard 84-604 measuring not more than 28 feet in length by 10 feet in height located approximately 16 miles West of Junction I-25 and I-80 on the South side of I-80 and billboard 84-614 measuring not more than 30 feet in length and 10 feet in height located approximately 2.7 miles West of Cheyenne, Wyoming, for a term of five (5) years beginning on the date that this Lease is fully executed by the parties. That date shall be hereinafter referred to as the "commencement date." The advertising sign site is hereinafter referred to as the "leased property."

SECTION TWO
RENT

Lessee shall pay City an annual rent of One Thousand Seven Hundred Dollars (\$1,700.00), including \$700 for billboard 84-603, \$500 for billboard 84-604 and \$500 for billboard 84-614, payable within thirty (30) days after the commencement date, and payable in advance on the commencement date in each year thereafter for the entire term of this Lease.

SECTION THREE
USE OF PROPERTY

Lessee shall use the leased property for the construction and maintenance of three billboards as described in Section One above, and for no other purpose whatsoever. Lessee shall not place on the leased property any advertisement for alcohol or tobacco products.

SECTION FOUR
COMPLIANCE WITH LAW

In its use of the leased property, Lessee shall fully comply with all applicable federal, state, county and municipal statutes, rules, regulations, and ordinances. In its use of the leased property, Lessee shall secure from the proper authorities all required licenses and permits before commencing any construction, re-construction, or significant repair of the billboard.

SECTION FIVE
REPAIRS AND MAINTENANCE

Lessee shall, at all times during the term of this Lease, keep all improvements placed by Lessee on the leased property in good repair, and shall maintain them at all times in a clean and attractive condition. Construction and maintenance activities shall be conducted in a manner that is not hazardous to livestock, including the installation of fencing if necessary to prevent unreasonable risks of harm to livestock. Lessee shall be responsible for any and all livestock injuries and deaths caused or in any way resulting from construction or maintenance activities.

SECTION SIX INSURANCE

Lessee shall obtain, and keep in full force and effect at all times during the term of this Lease, the following specified insurance coverages for the protection of City and Lessee against liability arising out of the condition of the leased property, the improvements erected on the property, or any operations of Lessee conducted pursuant to this Lease. In the event Lessee retains independent contractors to perform any operations on City land pursuant to this Lease, the insurance requirements stated in this Section shall also apply to each and every such contractor.

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000.00 per occurrence, \$2,000,000.00 aggregate for the entire term of this Lease.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000.00 per accident for the entire term of this Lease.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Lease, as required by Wyoming law, for all employees or agents providing services under this Lease. Lessee shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Workers' Compensation	Statutory
OR	
Employer's Liability	\$500,000 Each Accident \$500,000 Each Disease- Policy Limit \$500,000 Disease/Each Employee

Additional Insurance Information

Lessee shall provide the City copies of certificates of insurance acknowledging the above-stated coverages prior to entering upon City's land for the purpose of conducting any operations pursuant to this Lease.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Lease shall be in effect for the duration of this Lease. It shall be an affirmative obligation upon Lessee to immediately notify the City's Risk Manager, City Clerk and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Lease, and failure to do so shall be construed to be a breach of this Lease.

In addition, Lessee shall provide the City with copies of insurance policies and policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Lessee's obligations hereunder.

Any insurance company providing coverage under this Lease shall have a minimum A. M. Best rating of A- (excellent).

**SECTION SEVEN
OWNERSHIP OF IMPROVEMENTS**

All improvements erected by Lessee on the leased property shall remain the property of Lessee, and shall be removed by Lessee at the termination of this Lease or any renewal of the Lease.

**SECTION EIGHT
ACCESS TO LEASED PROPERTY**

City grants Lessee the right to pass to and from the leased property over City's private roads located on the City's Belvior Ranch for the purposes of construction, maintenance, and repair of the billboard advertising sign located on the leased premises; provided, however, that Lessee shall use said private roads in accordance with good management practices and shall take reasonable precautions to prevent damage to said roads and to the ranch lands adjacent to said roads and the leased property.

**SECTION NINE
TERMINATION**

A. By City.

1. If the City should make a bona fide contract for the sale of the leased property, the City may, at City's option, terminate this Lease by giving Lessee one hundred and eighty (180) days notice in writing, and refunding to Lessee the rental paid in advance pro rata for the unexpired term of this Lease.

2. If Lessee defaults in the payment of rent, or breaches any other covenant or condition of this Lease, the City may, in addition to any other remedy that the City may have, declare a forfeiture of this Lease for the default, re-enter the leased property, and remove all personal property from the premises.

B. By Lessee. During the term of this Lease, should the use of the leased property for the purpose permitted by this Lease be prohibited, limited or restricted by the terms of any restriction, covenant, regulation, ordinance, or zoning resolution affecting the property, Lessee may, at Lessee's option, terminate this Lease by giving the City thirty (30) days notice in writing of its election to do so.

C. Upon termination of this Lease, Lessee shall restore the leased property to its natural state including, without limitation, filling all holes and removing all debris caused by the removal of billboard signs and other items of personal property placed on the leased property by Lessee.

**SECTION TEN
EFFECT OF CONDEMNATION**

If the leased property, or any part of the leased property, is taken by eminent domain, this Lease shall terminate on the date when title vests pursuant to such taking.

SECTION ELEVEN RENEWAL OPTION

The Lessee shall have the option to extend this Lease for one additional five (5) year period, provided, however, that said option may be exercised only if (1) the Lessee is not in default of any of the terms and conditions of this Lease at the time the option is exercised; (2) the Lessee has practiced good stewardship of the leased property, access roads, and adjacent ranch lands as determined by the City in the exercise of its reasonable discretion; and (3) the Lessee provides written notice to the City of its intent to exercise its option to renew at least one hundred and twenty-days (120) days prior to the scheduled expiration of the Lease. Any such extension shall be on the same terms and conditions as set forth in this Lease, unless such terms and conditions are amended or renegotiated pursuant to mutual written agreement.

SECTION TWELVE INDEMNITY

The Lessee agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents, and authorized volunteers against any and all claims and costs, including attorney's fees, arising during or resulting from the Lessee's performance of its obligations under this Lease. The Lessee acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City. The City does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. 1-39-101, et seq. for any claim arising out of this Lease.

It is expressly understood and agreed that although the City has the right to observe and review the work and operations of the Lessee, this shall not relieve the Lessee from any of its covenants and obligations hereunder, and the Lessee shall be responsible for and hold the City and its officers, employees, agents and representatives harmless from all suits, actions or claims of any character due to injuries or damages sustained by any person or property in consequence of any breach or of default under this Lease, or of the failure to observe safety standards or regulations, or otherwise, or through the use of unsafe or unacceptable practices or materials in the performance of any operations under this Lease, or the Lessee's failure to comply with any law, ordinance or regulation.

The parties have executed this Lease the day and year first above written.

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The Lamar Companies

By: Korbe Palmer

Name

Title

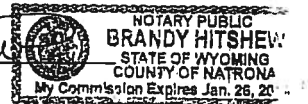
Korbe Palmer GM/VP

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Korbe Palmer
this 25th day of Feb, 2013.

Witness my hand and official seal.

Brandy Hitshe
Notary Public



My commission expires: January 26, 2014

CITY OF CHEYENNE, WYOMING

By: Richard L. Kaysen

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer
Carol Intlekofer, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Richard L. Kaysen, this
21st day of December, 2012.

Witness my hand and official seal.

Wendy J. Kinkade
Notary Public

My commission expires: 3 27 2014

